

permit Defendant to move back into the home.

Plaintiff also requests attorney's fees and costs in the amount of \$2,460.00 for bringing the motion. Section 16 of the written settlement agreement provides that "if litigation is initiated based on a claim that there has been a breach of this Agreement, or enforcement of this Agreement is required pursuant to Section 23 of this Agreement, the prevailing party in any such lawsuit shall be entitled to an award of reasonable attorney's fees and costs."

Considering the alleged breach of the agreement by both parties, the Court does not intend to grant the motion for enforcement of the agreement or attorney's fees and costs and defers ruling on the motion at this time. The Court notes a settlement conference is currently set for November 30, 2026. The Court believes that a resolution may be reached and advances the settlement conference to **Monday, August 3, 2026, at 1:30 p.m. in Department 64**. The clerk is directed to vacate the November 30, 2026, settlement conference.

IN RE: SULLIVAN

CASE NUMBER: 26CV-0210344

Tentative Ruling on Petition for Change of Name: Petitioner Brandon Charles Sullivan seeks to change his name to Brandon Charles Mitchell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

TRILLO, ET AL. VS. HINESLEY, ET AL.

CASE NUMBER: 25CV-0209540

Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the First Amended Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on June 5, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

Request for Judicial Notice. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; (5) the *Hage* Complaint (210078); and (6) a copy of the original *Trillo* Complaint (209540). The request is granted pursuant to Evid. Code §§ 452 and 453.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A